



Home Finders
COASTAL
THE MANDATE COMPANY

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OFFER TO PURCHASE

Property Practitioner: _____ Contact No : _____

THE PARTIES

To:

(Hereinafter referred to as '**the Seller**') currently residing at

I / We:

(Hereinafter referred to as '**the Purchaser**') currently residing at

Hereby offer to purchase through **HOME FINDERS COASTAL**
(Hereinafter referred to as '**the Property Practitioner/Agency**')

THE PROPERTY (Delete (a) or (b) below)

a) Freehold Stand No: in the Township of.....

in the District of being Street Address / Unit number

..... Complex / Estate known as (Where applicable)

b) Apartment / Townhouse No: Section No: Sectional Scheme (SS) N:

in the building known as on stand no

in (Street) of..... (Township)

of (District).

Refer to attached house rules where applicable

Levy: R pm., Municipal fees: R..... pm., Special Levy (if any): R

Including exclusive use areas (if any)

The Property is sold together with all buildings, erections and improvements of a permanent nature thereon, subject to all terms and servitudes mentioned or referred to in the current and / or prior Title Deeds of the said Property, and to all existing conditions of title which may exist in regard thereto, in the condition and to the extent as it now lies Voetstoots, having been thoroughly examined and the condition determined and accepted by the Purchaser as per the Sellers Mandatory Disclosure (Annexure: A), on the following terms and conditions:

1. PURCHASE PRICE

The Purchase Price is R..... (.....)
 as payable as follows:

1.1 R..... (.....)
 and will be secured as follows (*delete whichever is not applicable*)

1.1.1 to be deposited with the Conveyancer by midnight of(Date) where the Conveyancer shall deposit the sum in an interest bearing trust account for the benefit of the Purchaser.

1.1.2 by means of an acceptable irrevocable bankers guarantee to be delivered to the Conveyancer by midnight of(Date).

1.2 The balance of R..... (.....)
 shall be paid to the seller upon registration of transfer of the Property into the name of the Purchaser and shall be secured by means of a bankers or other guarantee within (*delete whichever is not applicable*):

1.2.1 30 days of a mortgage bond/s referred to in clause 2.1. being granted: or

1.2.2 7 days of registration of transfer of the Purchaser's property referred to in clause 2.2. The Purchaser undertakes to forthwith irrevocably instruct the Conveyancer attending to the transfer of the Second Property to pay the monies to the Conveyancer herewith nominated, or;

1.2.3 15 days of signature hereof if this agreement is not subject to 2.1 and / or 2.2.

1.3 The seller warrants that the purchase price is sufficient to cover the outstanding bonds / Property Practitioner's professional fee, rates and taxes, electricity and water and other imposts levied by the Local Authority, or Body Corporate. If there are any amounts due to the local Authority and / or Eskom for services rendered to the property the Seller will forthwith attend to payment of arrears and / or to resolve disputes. It is not the duty of the Property Practitioner or Conveyancer to attend to resolve the issue/s with the local authority and / or Eskom. The Seller will be liable to all parties for any damages suffered as a result of a delay in obtaining transfer as a result of arrear/disputed accounts.

1.4 The Seller declares that **he is / is not** (*delete whichever is not applicable*) a registered vendor in terms of the Value Added Tax act of 1991(as amended). Should the Seller be registered for VAT, he undertakes to make payments to S.A. Revenue Service in respect of the amount due.

2. SUSPENSIVE CONDITIONS

2.1 BOND FINANCE

2.1.1 This sale is conditional upon the Purchaser being able to obtain from a registered financial

institution, by midnight of (Date), a loan/s of not less than R.....

(.....) on the security of a mortgage bond/s to be registered over the property at rates and subject to terms and conditions as imposed by the financial institution to which application is made for the Purchaser at his expense, by the Seller or his Property Practitioner.

- 2.1.2 The Purchaser undertakes to complete, sign and submit to the Property Practitioner, or the Property Practitioner's Representative, a loan application within 7(seven) days of acceptance of this offer and subsequently on request, to complete any new loan application and all documents deemed necessary by the Property Practitioner to facilitate transfer, failing which, the suspensive condition herein contained shall be deemed fulfilled.
- 2.1.3 Irrespective of anything to the contrary in this agreement, the loan as aforesaid shall be deemed to be granted within the period stipulated, should a financial institution to which application is made, issue a quotation and/or pre-agreement statements, or similar documents purporting to have the same effect and meaning, within the period stipulated in this clause.
- 2.1.4 Should the required loan as aforesaid not be granted within the period stipulated, then this agreement will automatically lapse and be of no force or effect. Should the loan/s be granted for a lesser amount upon the Purchaser's request, this condition shall be deemed to be fulfilled.
- 2.1.5 Should the Purchaser by virtue of removing the suspensive condition relating to the sale of the Second Property as stated in clause 2.2.2 require to increase the amount of the mortgage bond applied for, the bond approval date may be extended by a maximum of 10 days, and such bond must be unconditional, and should the bond grant/security or guarantees not be received by the said date, this agreement will automatically lapse.

2.2 SALE OF SECOND PROPERTY *(delete 2.2.1 and / or 2.2.2 whichever is not applicable)*

2.2.1 PROPERTY SOLD BUT NOT REGISTERED

This sale is conditional upon the successful conclusion and registration of the sale of the Purchaser's

Property being Stand/Section nosituated at
(street)

of.....(township)of.....(district)
(hereinafter referred to as the 'Second Property'). In terms of the Agreement of sale of the Second Property between this Purchaser and his Purchaser,

being.....dated.....or any amendment thereof, all suspensive conditions contained in the said Agreement of Sale of the Second Property

must be fulfilled by no later than..... The Purchaser further warrants that all the other terms and conditions of the sale of the "Second Property" will enable him to perform in terms of this agreement.

2.2.2 SALE OF SECOND PROPERTY STILL BE SOLD

This sale is conditional upon the Purchaser being able to within..... days of signature, sell

his Property being Stand / Section no situated at

..... (street) of.....

(township) of (district) (hereinafter referred to as the 'Second Property) for the gross purchase price of not less

than R (.....) on terms and conditions that will enable the Purchaser to fulfil the terms of this offer.

Should the Purchaser accept a lower price, this condition shall be deemed to be fulfilled. The Purchaser generally undertakes to co-operate with the Property Practitioner in his endeavour to market and sell the Second Property and timeously fulfil this condition, and to apply for the required bond in terms of clause 2.1 Pending fulfilment of this condition, the Seller shall be entitled to continue to market the Property until successfully sold and should, prior to fulfilment of this condition, a bona fide offer (herein referred to as the 'Competing Offer')for the Property be received, which, but for this agreement, the Seller wishes to accept, the Seller may do so subject to the following:

- 2.2.2.1 The Competing Offer shall be unconditional except for the granting of an unconditional bond in favour of the Purchaser. The Seller undertakes not to accept any Competing Offer that is conditional upon the sale of another property.
- 2.2.2.2 Once the quote for an unconditional loan has been accepted in writing by the purchaser of the Competing Offer a copy of the Competing Offer and the acceptance of the quote shall be delivered to the Purchaser herein, who shall be given the option for 72 hours from delivery, to waive clause 2.2.2 in its entirety.
- 2.2.2.3 The Purchaser shall exercise this option in writing and the same must be delivered timeously to the Seller.
- 2.2.2.4 Should the Purchaser not timeously exercise this upon as aforesaid, the Seller shall be entitled to accept the Competing Offer and, on acceptance thereof, this agreement between the Seller and the Purchaser shall thereupon immediately and automatically lapse and be of no force or effect without prejudice to any party.

3. **OCCUPATION, TENANCY AND RENTAL**

3.1 The Seller and all other occupants of the property shall be bound and obliged to vacate the property onprovided that all suspensive conditions of the Agreement of Sale have been fulfilled, from which date the Purchaser shall be entitled and obliged to occupy the property.

3.2 Should the Purchaser take occupation before transfer, he shall pay the Seller

R..... (.....)
monthly in advance in lieu of the rent from date of occupation to date of transfer. In addition the Purchaser shall pay for all water and electricity consumed. If the transfer is registered before the Purchaser takes occupation, the Seller undertakes to pay the Purchaser on the same basis from date of transfer to date of occupation. Occupational rent to be paid to the **Conveyancer/Seller**,*(delete whichever is not applicable)*The Seller shall ensure that the Property is in the same condition when the Purchaser takes occupation as it was at the date of signature of this agreement.

3.3 If occupation is given to the Purchaser before the date of transfer, the Purchaser:

3.3.1 Shall not be entitled to make any alterations to the Property before transfer without the prior written consent of the Seller, which consent shall be at the Seller's sole and absolute discretion.

3.3.2 The Purchaser and all other occupants shall be obliged to vacate the Property upon cancellation of the sale for any reason whatsoever, it's being agreed that no tenancy was or shall be created by any such prior occupation.

3.4 * The Purchaser is hereby notified and acknowledges that the Property is let to a Tenant and that the purchase is made subject to the Tenant's rights.

OR

3.5 * The Seller warrants that the Purchaser will obtain actual occupation of the Property on the date provided herein.**(delete whichever is not applicable)*

4. **BENEFIT AND RISK**

4.1 On registration of transfer of property, the risk of ownership thereof shall pass to the Purchaser, from which date the Purchaser shall receive all benefits from, and be responsible for all rates and taxes and any other imposts levied upon property.

4.2 Should the Property hereby being sold be a Sectional Title unit, the parties agree that the Seller shall not be liable for the levies and/or any special contributions due and payable to the Body Corporate as from the date of registration of transfer into the Purchaser's name. Accordingly, the Purchaser shall be liable and pay all levies, special contributions and/or all other relevant costs due to the Body Corporate from date of registration.

4.3 If before registration of transfer of the Property, the Body Corporate imposes a Special Contribution as per the Sectional Title Schemes Management Act 8 of 2011 Section 3(4), the Purchaser shall be liable for the pro rata payment of such special contributions calculated from the date of transfer of the Property into the name of the Purchaser as per Section 3(3) of the Act.

5 PROFESSIONAL FEE

The Property Practitioner's professional fee on the full purchase price calculated at **7.5%**

R..... (.....)
(Plus VAT as outlined in point 5.6) shall be deemed to have been earned upon signature of this agreement of sale by both parties and the subsequent fulfilment of all suspensive conditions hereof. The Seller shall continue to be liable to the Property Practitioner if the sale shall be cancelled either by mutual consent or reason of any breach of this agreement by the Seller. The Purchaser and the Seller hereby consent to the conveyancers paying over the Property Practitioner's professional fee to the Estate Agency upon fulfilment of the suspensive conditions and the professional fee shall be deemed as earned.

5.1 The Purchaser warrants to the Seller that he/she was not introduced to the Property by anyone other than the Property Practitioner who was the effective cause of the sale.

5.2 In the event of the sale being cancelled or not proceeded with due to any default by the Purchaser, then, and in such event, and notwithstanding anything to the contrary herein contained, the Purchaser shall become personally liable to the Property Practitioner for the payment of the professional fee and the Property Practitioner shall be entitled at his option to claim from the Purchaser. Any deposit paid to the Conveyancer will be retained for payment of damages suffered by the seller and payment of the professional fee to the Property Practitioner, in accordance with clause 6 below.

5.3 The Purchaser shall be liable for the Property Practitioner professional fee should this agreement be cancelled by the Purchaser after registration of the transfer of the property into the name of the Purchaser.

5.4 The parties hereby irrevocably instruct the Conveyancer to withhold registration of transfer in the event of the proceeds of the sale being insufficient to pay the full amount of the professional fee due to the Property Practitioner, until such time as the deficit has been made up. The Conveyancer shall undertake to secure the property practitioner's professional fee once all suspensive conditions have been met, and acknowledge receipt of instruction within 10 days.

5.5 The provisions of this clause as well as certain other provisions herein are intended by the Seller and Purchaser to be a contract for the benefit of the Property Practitioner (stipulatio alteri) which may be enforced by the Property Practitioner, it being recorded and agreed that the Property Practitioner has accepted the benefits hereof by the Property Practitioner's signature at the foot hereof.

5.6 The parties agree that the professional fee amount stipulated in clause 5 hereof shall be paid to the following participant agencies as follows:

Listing Agency:.....their share being% FFC.....

Selling Agency:.....their share being% FFC.....

The parties irrevocably instruct and authorise the Conveyancer to pay directly to each participant agency its share of the commission. It is also the responsibility of the relevant agencies to inform the Conveyancer whether or not they are VAT Registered.

6. BREACH

Should either party breach any provision of this agreement and fail to remedy such breach within 10 days after dispatch of written notice by registered mail or fax or email (with proof of successful transmission) requiring such breach to be remedied, the aggrieved party shall be entitled, without prejudice to any other rights in law, to cancel this agreement forthwith or claim immediate specific performance of all the defaulting party's obligation and/or to claim damages. The aggrieved party shall be entitled to receive or retain as *rouwkoop* or as a genuine pre-estimate or on account of any pending determination by court of actual damages sustained, the balance of the deposit and any other monies paid by the Purchaser after deduction of the professional fee payable to the Property Practitioner in terms of clause 5 hereof.

7. DOMICILIUM CITANDI ET EXECUTANDI

The parties hereby agree to accept any notices, including legal notices, in terms of this Agreement at the postal, physical, e-mail addresses or facsimile, set out below. If any party wants to change the address, facsimile or e-mail where notices will be accepted, that party must notify the other party in writing by prepaid registered post, hand delivery, facsimile or e-mail. The notice must state the following:

- That you are changing your address, facsimile or e-mail where notices will be accepted,
- State the new address, facsimile or e-mail where you will accept notices.

Seller:

Physical Address:
.....

Fax number: Email address:

Purchaser:

Physical Address:
.....

Fax number: Email address:

8. SOUTH AFRICAN REVENUE SERVICE

- 8.1 As a result of the South African Revenue Service (SARS) doing risk analysis on both the transferor and the transferee on all property transaction both the Seller and the Purchaser warrant to each other and the Property Practitioner that all tax issues (whether personal or otherwise) including but not limited to tax returns and tax payments are current and up to date. The defaulting party will be liable for all costs incurred and damages suffered by the aggrieved party as a result of a breach of this warranty. The aggrieved party shall also be entitled to place the defaulting party on terms and thereafter cancel the agreement if this warranty is breached. The remedies are in addition to all rights which the parties have in terms of this agreement or in Law.
- 8.2 The Seller is aware that if he is a foreign national, a percentage of the proceeds must be withheld in terms of current taxation requirements, pending receipt of a tax clearance certificate from SARS, and the Purchaser and the Property Practitioner, being liable to SARS to give effect to this requirement, hereby instruct the Transferring Attorney to withhold the required percentage, pending receipt of such certificate.

9. JURISDICTION

For the purpose of all or any proceedings herein the parties hereby consent to be jurisdiction of the Magistrate's Court otherwise having jurisdiction under Section 28 of the act pursuant to Section 45 of the Magistrate's Court Act 1944 as amended. However, an aggrieved party may at his sole option institute proceedings in any other competent Court, which has jurisdiction.

10. TRANSFER

The Seller hereby nominatesas Conveyancer to effect transfer. All costs incidental to transfer, including transfer duty and stamp duty, shall be paid by the Purchaser on demand. The Seller and the Purchaser undertake immediately upon being requested to do so, to sign all documents required to be signed in connection with the transfer, the cancellation of all bond/s at present registered over the property and the registration of any bond/s to be registered in terms of this agreement. The Purchaser shall remain liable for the costs of transfer should this agreement be cancelled by the Purchaser after registration of the transfer of the property into the name of the Purchaser.

11.FIXTURES AND FITTINGS

The Property is sold with all fixtures and fittings of a permanent nature, which the Seller warrants are fully paid for, and owned solely by the Seller, including all existing garden trees / shrubs / plants, stove, electrical light fittings/ shades and(if any) curtain rails/rods/pelmets/blinds, swimming pool equipment/filters/ motors, fitted carpets, fitted kitchen storage units, post box, electrical geyser(s),TV aerial, DSTV satellite dish, burglar alarm system, door-bell/ knocker, keys and remotes. All electrical items are to be in working order on date of occupation. The purchaser is aware that the radio transmitter connected to the alarm system (if applicable) is the property of

..... Security Company.

Specific Inclusions:

.....
.....

Specific Exclusions:

.....
.....

Should the property be sold with furniture, appliances and / or any moveable items the following conditions will apply:

- a) All moveable items are included at a zero value and are supplied “voetstoots” by the Seller to the Purchaser.
- b) No warrantee or guarantee will be given for any moveable item and the condition of such items will be treated as second hand goods which carries no warrantee or guarantee that the items are in working order, unless otherwise specified by the Seller.
- c) The Purchaser may at his own discretion inspect the moveable items to determine the usability of the items.

12.SOLD BOARDS

The Seller and Purchaser agree that the Property Practitioner/s are permitted to place ‘SOLD’ signs in front of the Property for a period of 90(ninety) days after suspensive conditions have been fulfilled.

13.CERTIFICATES OF COMPLIANCE in terms of the Occupational Health and Safety Act

13.1 The Seller shall obtain, at his expense, a Certificate/s of Compliance for gas and electrical installations (where applicable) in accordance with the regulations under the Occupational Health and Safety Act No.85 of 1993.

The Seller shall within 14(fourteen) days of fulfilment of the suspensive conditions, deliver the said Certificate/s to the Conveyancer. Should the Seller fail to furnish the Certificate/s, the Purchaser will be entitled to obtain same and in that event, the Seller hereby authorises the Conveyancer to deduct the cost of obtaining same from the Nett proceeds and to reimburse the Purchaser. The parties hereby instruct the Conveyancer not to effect transfer of the property into the Purchaser’s name, until the said certificate/s has been delivered to the Conveyancer. Please note that it is not the duty of the Property Practitioner or Conveyancer to obtain this certificate.

13.2 The Seller shall obtain at his cost a report or certificate issued by a properly qualified and Government approved person to the effect that there is no evidence of active infestation by timber destroying insects or creatures and deliver this certificate to the Conveyancer prior to the transfer date. Should there be evidence of any infestation, the Seller shall, at his expense, cause such infestation to be eradicated within 21 (Twenty-One) days of being advised thereof to enable such report or certificate to be issued.

14.COOLING OFF PERIOD(only applicable to properties up to 250 000)

The Purchaser’s attention is drawn to the rights conferred upon him by virtue of Section 29(A)(1) of the Alienation of land Act No.68 of 1981(as amended), which is subject to section 29(A)(5),in terms of which he may revoke/terminate this Offer To Purchase/Deed of Alienation by written notice to the Seller within 5(five) days(excluding date of signature of this agreement and excluding Saturdays, Sundays and Public Holidays) after signature hereof, and to have any amount already paid by him in terms hereof refunded in the event of such termination. Notice of termination must be delivered in writing to the Property Practitioner before

5pm on

15.IRREVOCABLE OFFER

This offer is irrevocable until midnight on and is binding upon signed acceptance at any time prior thereto, irrespective of notification to the Purchaser.

16.GENERAL

- 16.1 This document constitutes the entire agreement between the parties, and no addition to or variation of this Offer to Purchaser shall be of any force or effect unless reduced to writing and signed by or on behalf of the parties, where applicable in the form of an addendum.
- 16.2 The parties acknowledge that they understand and agree to the contents hereof and the Property Practitioner has explained the meaning and consequences of the material provisions of this agreement to them.
- 16.3 Neither the Seller nor the Property Practitioner on the Seller’s behalf has warranted the correctness of any advertisements relating to the Property, nor the size or extent of the Property.
- 16.4 The parties agree that the Property Practitioner is acting in a representative capacity only, and will not be held liable for any undertaking, warranty or guarantee given by the Seller whether agreed upon or placed on the Seller by virtue of any statutory obligation.
- 16.5 The Seller/s and the Purchaser/s hereby give their consent to the estate agency/ies involved in the sale, and the Conveyancing Attorneys who will register the transfer of the property, to process our personal information for all purposes related to this sale, in accordance with the provisions of the Protection of Personal Information Act.
- 16.6 It is hereby placed on record that the Purchaser acknowledges having conducted all required due diligence, investigations and enquiries in respect of the environmental status of the property/land sold herein. The Purchaser further confirms that he/she/it is aware of all applicable environmental laws, regulations and requirements relating to the property and that the Purchaser hereby accepts the property/land as is in respect of its environmental condition. The Purchaser furthermore releases the Seller and Property Practitioner from any liability or obligations concerning environmental compliance, remediation or future requirements imposed under any applicable environmental legislation.

17 OTHER UNDERTAKING / CONDITIONS

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.....

.....

18 SIGNATURE

Thus done and signed by the Purchaser aton
this day of /20..... at am / pm.

.....
Purchaser

.....
Purchaser

.....
As Witness

.....
As Witness

.....
Name of Witness

.....
Name of Witness

Thus done and signed by the Seller aton this
.....day of /20..... at am / pm.

.....
Seller

.....
Seller

.....
As Witness

.....
As Witness

.....
Name of Witness

.....
Name of Witness

Thus done and signed by the Property Practitioner at
on this day of /20..... atam / pm
who hereby accepts the benefits contained in clause 5 of this contract.

Property Practitioner:..... Co-Sign
(where applicable)